

In the Court of Sh. Prashant Kumar, Commercial Civil Judge cum
Additional Rent Controller, North District at Tis Hazari Courts, Delhi.

Suit No. 18/10/01

In the matter of :-

M/s. Raghunandan Saran Ashok Saran, HUF,

through its Karta, Ashok Saran,

Peareylal Building, 40-42, Janpath,

New Delhi-110001

.....Plaintiff

Versus

Messrs Martin Burn Limited,

42, Janpath,

New Delhi-110001

.....Defendant

Date of Institution:- 20.10.2001

Date of reserved for Judgment:- 30.03.2012

Date of Pronouncement:- 30.03.2012

SUIT FOR EJECTMENT OF MARTIN BURN LIMITED FROM
PREMISES IN ITS UNLAWFUL OCCUPATION IN 40-42, JANPATH,
NEW DELHI AND DELIVERY OF POSSESSION OF SAID
PREMISES TO PLAINTIFF AND ALSO FOR DETERMINATION
AND GRANT OF MESNE PROFIT

JUDGMENT

1. By way of this Order I shall announce final judgment.
2. The facts of the case filed by the plaintiff, in brief, are as under that:

Plaintiff Raghunandan Saran Ashok Saran, HUF are landlord/owner of the property 4-42, Janpath, New Delhi. Defendant Martin Burn Limited is in unlawful occupation of a portion comprising large hall, lavotary and WC on the first floor of the plaintiff's property 40-42, Janpath, New Delhi. Tenancy has expired in 1960 by efflux of time. Defendant is therefore, a statutory tenant who was earlier a contractual tenant. In 1997, coming to understand the status Martin Burn Limited as statutory tenants are no longer valid in law, plaintiff delivered letter dated 15.05.1997 to defendant demanding delivery of possession to plaintiff. From June, 1997, plaintiff did not accept any rent from defendant. No new tenancy has been created. Possession has not been handed over by the defendant. Defendant instead of vacating the premises tried to deposit Rs. 1,290/- the rent for the month of June, 1997 which was however, dismissed by the ARC. Revision petition was preferred by the defendant which was also dismissed. It is further alleged that the defendant is having unlawful occupation of the premises. The

valuation of the suit has been done according to the monthly rent of Rs. 1,290/-.

3. In his written statement, it is stated that the plaintiff is the landlord of the suit property in question which was lease out vide Lease Agreement dated 19.05.1955 which was for a period of five years. Defendant remained in possession of the premises as statutory tenants. In the year 1982, he sought permission to sub let a portion of the property which was permitted by the plaintiff. The consent was given by the plaintiff only after surrendering a portion of lease property by defendant to the plaintiff which has been confirmed vide letter dated 16.08.1982 by the plaintiff. It is alleged by the defendant that the suit filed by the plaintiff is barred by the provisions of Delhi Rent Control Act as the rate of rent is Rs. 1,290/- per month. It is further stated that appropriate court fee has not been filed by the plaintiff.

4. After the pleadings were complete, following issues have been framed in this case on 29.09.2007:-

- 1. Whether the tenancy of the defendant is validly terminated as per Section 106 of Transfer of Property Act? OPD**
- 2. Whether the defendant is entitled to the protection under D.R.C. Act as statutory tenant? OPD**

3. Whether the plaintiff is entitled to a decree of possession in respect of suit property against the defendant? OPP

4. Whether the plaintiff is entitled to any interest/mesne profit. If so, at what rate or for what period? OPP

5. Relief.

5. Before proceeding further, it is important to mention here that one application u/O 12 Rule 6 CPC was filed by the plaintiff which was dismissed vide order dated 02.06.2011. One application seeking review of this order was filed which was again dismissed vide order dated 23.12.2011. Another application seeking another review was filed which was again dismissed on 28.02.2012. As per order dated 28.02.2012, it is reflected that the plaintiff was present in person and after his review application was decided he has stated that he do not want to lead any evidence on his behalf. Plaintiff was asked to lead evidence for abundant precaution, however, it has been categorically stated by the plaintiff that he do not wish to lead any evidence, therefore, his statement was recorded on 28.02.2012 which is recorded at length. Recording the submissions on behalf of the plaintiff which is on oath is voluntarily and without any pressure. Plaintiff was again asked to lead evidence but he denied. Therefore, at the statement of the plaintiff himself, the PE was

closed as the plaintiff was not interested in leading any evidence. In these circumstances, counsel for the defendant has also stated that he also do not want to lead any evidence. It is, therefore, reflected from the record itself that there is no evidence from the side of the parties and more particularly, plaintiff. Therefore, whatever facts has been alleged by the plaintiff remains unsupported and without any evidence. During final arguments the plaintiff has alleged that as per the law laid down in number of judgments, his suit should be decreed. The judgments relied upon by the plaintiff are as:-

- 1. Parripati Chandrasekharrao & Sons Vs. Alapati Jalaiah, (1995) 3 Supreme Court Cases 709**
- 2. M/s. Raptakes Brett & Co. Ltd. Vs. Ganesh Property, AIR 1998 Supreme Court 3085**
- 3. Narinder Kumar Vs. Sunshine Roadways, 1999 Rajdhani Law Reporter. 201**
- 4. Vithaldas Vs. Gulam Ahmad and another, AIR 1927 Nagpur 156.**
- 5. Ganga Dutt Murarka Vs. Kartik Chandra Das and others, AIR 1961 Supreme Court 1067(V 48 C 179)**

6. R. V. Bhupal Pershad Vs. State of A.P., 1995, Rajdhani Law Reporter (SC) 569.

6. All the judgments relied upon by the plaintiff lays down the law on the subject and one thing is stated in clear words that the plaintiff has to take the possession “by following due process of law”. He cannot take law in his own hands. This fact is not denied and disputed by the plaintiff and he himself has stated these facts in his arguments. The due process of law established for deciding any dispute between the parties is to decide their respective contentions according to Indian Evidence Act. Plaintiff has deliberately not led any evidence. Therefore, all the facts narrated by the plaintiff remains unsupported by any evidence. The issue pertaining to technical defects in notice given u/S 106, Transfer of Property Act is mixed question of fact and law. Whereas, the issue pertaining to objections of DRC Act is purely a question of law. The plaintiff himself has alleged that the rate of rent of the premises in question is Rs. 1,290/- and he has filed the court fee according to this value. In these circumstances, as per the facts alleged by the plaintiff himself, I am of the considered opinion that the value for the purpose of pecuniary jurisdiction assessed by the plaintiff has to be considered accordingly. As per Section 3 of Delhi Rent Control Act, the rent

controller has jurisdiction on such matters involving dispute of landlord and tenant where rate of rent is not more than Rs. 3,500/- and as per Section 50 DRC Act, if the rent controller has a power to decide any dispute as per Section 3 & 14 of DRC Act then, Civil Court has no jurisdiction.

7. In these circumstances, this issue no. 2 can be decided on the basis of arguments itself. Section 50 DRC Act, is therefore, applicable in this case. Hence, civil court has no jurisdiction to try the present matter. It has already been mentioned above that there is no evidence from the side of the plaintiff, therefore, as already stated above, all the facts alleged by the plaintiff are not supported by any evidence. Hence, plaintiff cannot be said to have discharge any burden of proving any issue upon him. In these circumstances, therefore, suit filed by the plaintiff is not maintainable. Hence, it is dismissed.

Announced in open Court
on 30.03.2012

(PRASHANT KUMAR)
CCJ cum ARC (North District)
THC/ Delhi/30.03.2012

30.03.2012

Present: Plaintiff in person.

Mr. Tarun Rana, Counsel for the defendant alongwith
Mr. Manoj Chauhan.

Mr. Arun Vohra, Counsel for the defendant alongwith
Mr. Abhishek Saraf, AR of the defendant.

Mr. Tarun Rana has filed one letter which is extract of minutes of meetings of Board of Directions of the defendant company and it is submitted that he has been appointed as a counsel on behalf of the defendant company M/s. Martin Burn Limited. The other counsel Mr. Arun Vohra has taken serious objection in this regard and has alleged that the AR Abhishek Saraf, who is present today in the court, his attorney has not been cancelled by the defendant company till date and on the basis of the power vested with the authorized representative, he is the only appointed counsel in this case. It is further alleged that the defendant company had gone to Hon'ble High Court of Calcutta for withdrawl of the Power of Attorney in favour of Abhishek Saraf and then proceedings were withdrawn on behalf of the defendant company meaning thereby is that Abhishek Saraf is still the duly legally appointed authorized representative of the defendant company.

In these circumstances, as a dispute has been arose between both the

counsels with regard to their respective appointment, both the counsels are asked to file their respective affidavits accordingly as per the law.

Mr. Tarun Rana, Advocate has filed his affidavit stating that he is duly appointed advocate on behalf of the defendant company. Another affidavit is filed on behalf of Abhishek Saraf wherein he has alleged that he has appointed Mr. Arun Vohra as an advocate in this case being the legally appointed attorney of the defendant company.

In the light of the affidavits and the documents filed on behalf of both the counsels/AR of the defendant company, it is, therefore, reflected that both the counsels have been questioning the appointment of other counsel by the defendant company. Therefore, Mr. Tarun Rana had filed a document stating that he has been appointed by the defendant company directly whereas Mr. Arun Vohra has stated that he has been appointed by the Power of Attorney holder of the company.

In these circumstances, as none of the counsel have shown anything on record till date that they are the only appointed advocate in this case and no other counsel is the attorney as on date. It is, however, pertinent to mention here that the extracts of minutes of meeting of Board of Directors reflects that Mr. Tarun Rana is the only advocate appointed at Delhi representing the defendant company. However, it does not specifically mentioned that the attorney/appointment of earlier counsel as well as of

authorized representative has been revoked by the company. Therefore, in the interest of justice, both the counsels may represent the defendant. If there is any controversy with regard to their respective appointments then they may seek their appropriate remedy before appropriate forum.

One application u/S 151/152 CPC is filed by and on behalf of Mr. Arun Vohra, Advocate for the defendant. Record perused. Arguments heard.

Order dated 28.02.2012 has been passed in the presence of the counsels and has been dictated in open court. It does not suffer from any typographical or clerical mistake, hence, application filed on behalf of counsel Mr. Arun Vohra is not maintainable and is dismissed.

Final arguments heard.

Vide my separate judgment, the suit filed by the plaintiff is dismissed. Decree sheet be prepared accordingly.

File be consigned to record room.

(PRASHANT KUMAR)
CCJ cum ARC (North District)
THC/ Delhi/30.03.2012.